

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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TERRY BURGESS,

Plaintiff,

-against-

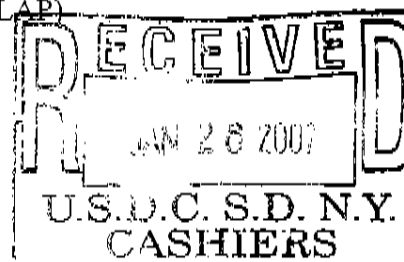
**FIRST AMENDED
COMPLAINT AND
JURY DEMAND**

THE CITY OF NEW YORK, POLICE COMMISSIONER
RAYMOND W. KELLY, DEPUTY INSPECTOR
ROBERT BROWER, SERGEANT JOHN HOPKINS,
DETECTIVE FRANK GALATI, JOHN DOE #1

06CV5165 (LAP)

ECF CASEL

Defendants.
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PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of his rights secured by 42 USC §1983, the Fourth and Fourteenth Amendments to the United States Constitution and the laws and constitution of the State of New York.

2. The claim arises from a August 20, 2005 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to, inter alia, false arrest, excessive force, assault, battery, and false imprisonment.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action is brought pursuant to 28 USC §1331, 42 USC §1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

5. The amount in controversy exceeds \$75,000.00 excluding interest and costs.

6. Venue is laid within the United States District Court for the Southern District of New York in that Defendant City of New York is located within and a substantial part of the events giving rise to the claim occurred within the boundaries of the Southern District of New York.

PARTIES

7. Plaintiff is a citizen of the United States and at all times here relevant resided in the County of Kings, City and State of New York.

8. The City of New York is a municipal corporation organized under the laws of the State of New York.

9. New York Police Commissioner Raymond Kelly ("the Commissioner") was at all times here relevant the Commissioner of the New York City Police Department, and, as such, was a policy maker with respect to training, supervision, and discipline of NYPD officers, including the other individual defendants. The Commissioner is sued in his individual and official capacities.

10. Deputy Inspector Robert Brower was at all times here relevant the Commanding Officer for the 81st Precinct and, as such, was a policy maker with respect to training, supervision, and discipline of NYPD officers within the precinct, including the other individual defendants. Deputy Inspector Brower is sued in his individual and official capacities.

11. All other individual defendants are members of the NYPD, and are sued in their individual and official capacities.

12. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City

and State of New York.

NOTICE OF CLAIM

13. Within 90 days of the events giving rise to this claim, plaintiff filed written Notice of Claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of that notice, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

14. On August 20, 2005, at approximately 12.30 a.m., plaintiff was in the vicinity of Lewis Ave. and Myrtle Ave. in Brooklyn when he was stopped and searched by the defendant police officers without reasonable suspicion, probable cause or with any reasonable belief that the officers were in danger.

15. The defendant officers assaulted and battered plaintiff, causing serious injuries.

16. The defendant officers then arrested plaintiff without probable cause. Plaintiff was strip searched while inside the precinct.

17. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events.

18. During all of the events above described, defendants acted maliciously and with intent to injure plaintiff.

19. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

a. Violation of his rights pursuant to the Fourth and Fourteenth Amendments

to the United States Constitution to be free from an unreasonable search and seizure of his person;

b. Violation of his right to Due Process of Law under the Fourteenth Amendment to the United States Constitution;

c. Physical pain and suffering, requiring the expenditure of money for treatment;

d. Emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, financial loss, and property damage;

g. Loss of liberty;

h. Attorney's and court fees.

FIRST CAUSE OF ACTION
(ASSAULT)

20. Paragraphs one through 19 are here incorporated by reference.

21. Upon approaching plaintiff and arresting him, defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

22. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under the laws under the State of New York.

23. Plaintiff was damaged by defendants' assault in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

SECOND CAUSE OF ACTION
(BATTERY)

24. Paragraphs one through 23 are here incorporated by reference.

25. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him.

26. Defendants used excessive and unnecessary force with plaintiff.

27. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under the laws of the State of New York.

28. Plaintiff was damaged by the battery of the defendants in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

THIRD CAUSE OF ACTION
(FALSE ARREST AND ILLEGAL IMPRISONMENT)

29. Paragraphs one through 28 are here incorporated by reference.

30. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

31. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under the laws of the State of New York.

32. As a result of the false arrest, imprisonment, and deprivation of liberty, plaintiff was damaged in the sum of Five Hundred Thousand (\$500,000.00) Dollars.

FOURTH CAUSE OF ACTION
(MUNICIPAL LIABILITY)

33. Paragraphs one through 32 are here incorporated by reference.

34. The City, the Commissioner, the Deputy Inspector and the Captain are liable for the damages suffered by plaintiff as a result of the conduct of their employees, agents, and servants.

35. The City, the Commissioner, the Deputy Inspector and the Captain knew or should have known that the acts of the police officers were negligent, unlawful, and wrongful acts detailed above.

36. The aforesaid event was not an isolated incident. The City, the Commissioner, the Deputy Inspector and the Captain have been aware for some time (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board) that many of their police officers are insufficiently trained on the proper basis for an arrest, and the observations required to support probable cause. The City, Commissioner, Deputy Inspector and Captain are further aware, from the same sources, that a "wall of silence" exists by which police officers assault citizens without fear of reprisal. The City, Commissioner, Deputy Inspector and Captain fail to discipline officers for not reporting fellow officers' misconduct that they have observed, and they fail to discipline officers for making false statements to disciplinary agencies. Further, there is no procedure to notify individual officers or their supervisors of the results of judicial review of their conduct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected. Additionally, the City, Commissioner, Deputy Inspector and Captain have isolated their law department from the discipline of police officers, so that civil suits against police officers for actions taken in their capacity as police officers have no impact on the officers' careers, regardless of the outcome of the civil actions. The City is aware that all of the

aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate the plaintiff's civil rights, without fear of reprisal.

37. The City, Deputy Inspector, Captain and the Commissioner knew or should have known that the officers who caused plaintiff injury had a propensity for the type of conduct that took place in this case. Nevertheless, the City, Deputy Inspector, Captain and Commissioner failed to take corrective action.

38. The City, Deputy Inspector, Captain and Commissioner have failed to take the steps to discipline, train, supervise or otherwise correct the improper, illegal conduct of the individual defendants in this and in similar cases involving misconduct.

39. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of New York City, the Captain, the Deputy Inspector and the Commissioner to the constitutional rights of persons within New York City, and were the cause of the violations of plaintiff's rights here alleged.

40. Defendants City of New York, the Commissioner, the Deputy Inspector and the Captain have damaged plaintiff by their failure to properly train, supervise, discipline, review, remove, or correct the illegal and improper acts of their employees, agents or servants in this and in similar cases involving police misconduct.

41. Plaintiff has been damaged as a result of the wrongful, negligent and illegal acts of the City, the Commissioner, the Deputy Inspector and the Captain in the amount of Five Hundred Thousand (\$500,000.00) dollars.

FIFTH CAUSE OF ACTION
(42 USC § 1983)

42. Paragraphs one through 41 are here incorporated by reference.

43. Defendants have deprived plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC § 1983.

44. Defendants' conduct deprived plaintiff of his right to be free of unreasonable searches and seizures pursuant to the Fourth Amendment of the United States Constitution. Defendants' conduct also deprived plaintiff of his right to due process of law, pursuant to the Fourteenth Amendment of the United States Constitution.

45. Plaintiff has been damaged as a result of defendants' wrongful acts in the amount of Five Hundred Thousand (\$500,000.00) dollars.

SIXTH CAUSE OF ACTION
(CONSTITUTIONAL TORT)

46. All preceding paragraphs are here incorporated by reference.

47. Defendants, acting under color of law, violated plaintiff's rights pursuant to §§6 and 12 of the New York State Constitution.

48. A damages remedy here is necessary to effectuate the purposes of §§6 and 12 of the New York State Constitution, and appropriate to ensure full realization of plaintiff's rights under those sections.

49. As a result of this violation of his rights guaranteed by the constitution of the State of New York, plaintiff was damaged in the sum of Five Hundred Thousand (\$500,000.00) Dollars.

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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06CV5165 (LAP)

Plaintiff,

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FIRST AMENDED
COMPLAINT AND JURY
DEMAND

THE CITY OF NEW YORK, ET AL.

Defendants.

AFFIRMATION OF SERVICE

State of New York

County of Kings

I, the undersigned, an attorney duly admitted to practice in the State of New York, with offices at 71 Nevins Street, Brooklyn, New York, 11217, affirm as follows as under penalties of perjury:

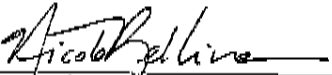
On January 23, 2007, I personally caused to be served the above referenced First Amended Complaint

/XX/ **SERVICE FIRST CLASS MAIL**; by depositing same in a first class postpaid properly addressed wrapper, in a post office/official depository under the exclusive care and custody of the United States Postal Service, within New York State, directed to the attorney at the address set forth below, being the address designated by said attorney for that purpose:

I knew the attorney served to be the attorney for the parties stated below.

Law Department of the City of New York
Office of the Corporation Counsel
Attorney for Defendants
100 Church Street, 4th Fl.
New York, NY 10007
Attn: ACC David Pollack

Dated: Brooklyn, New York
January 23, 2007


Nicole Bellina, Esq.